URUKIKO RW'UBUCURUZI, RURI KU CYICARO CYARWO I KIGALI, RUHABURANISHIRIZA IMANZA Z'UBUCURUZI KU RWEGO RWA MBERE, RUHAKIRIJE MU RUHAME URUBANZA RS/SCP/RCOM 00388/2024/TC, NONE KU WA 9/01/2026 MU BURYO BUKURIKIRA:

HABURANA:

UREGA: NTABWOBA Innocent mwene MUGABO na MURERWA utuye mu Mudugudu wa Rugenge, Akagari ka Rugenge, Umurenge wa Muhima, Akarere ka Nyarugenge, Intara y' Umujyi wa Kigali,Tel +250783114030 e-mail ntabwobainnocent@gmail.com ,uhagarariwe na Me Mugabo Fidele

UREGWA: INKOMBE AGRICULTURE LTD ibarizwa mu Mudugudu wa Samuramba, Akagari ka Ntebe, Umurenge wa Muyumbu, Akarere ka Rwamagana, Intara y' Umujyi wa Kigali, TEL +250783199712 e-mail liangjiangbo211@gmail.com

IKIBURANWA: Gusaba urukiko kwemeza umwenda wa 2,613,320 Frws y'ibirarane by'umwenda INKOMBE AGRICULTURE LTD ibereyemo NTABWOBA Innocent ukomoka ku mazezerano atarubahirijwe n'indishyi zitandukanye.

I. IMITERERE Y'URUBANZA

1. Ku wa 14/02/2023 NTABWOBA Innocent yagiranye amasezerano na INKOMBE AGRICULTURE LTD yiswe Commission Sales Agent Contract",aya masezerano akaba yari agamije gushaka ibibanza INKOMBE AGRICULTURE LTD yashakaga kugura, NTABWOBA Innocent yakoze akazi kose yasabwaga mu masezerano maze ashaka ibibanza ndetse abyereka INKOMBE AGRICULTURE LTD irabishima ndetse iranabigura ariko irangije ntiyishyura igice cy'amafaranga yari isigaje kwishyura NTABWOBA Innocent,ku wa 09/04/2024 NTABWOBA Innocent yandikiye INKOMBE AGRICULTURE LTD integuza yo kugira ngo bakemure ikibazo mu bwumvikane nk'uko biteganywa n'amasezerano ariko kugera kuri uyu munsi INKOMBE AGRICULTURE LTD yanze kugira icyo ikora ngo irangize mu mahoro amasezerano yagiranye na NTABWOBA Innocent.

2. Ku wa 26/08/2024 NTABWOBA Innocent yatanze ikirego muri uru rukiko arega INKOMBE AGRICULTURE LTD asaba urukiko kwemeza umwenda

wa 2,613,320 Frws y'ibirarane by'umwenda Inkombe Agriculture LTD ibereyemo NTABWOBA Innocent ukomoka ku masezerano atarubahirijwe n'indishyi zitandukanye ikirego cyahawe numero RS/SCP/RCOM 00388/2024/TC ndetse kinahabwa umunsi wo kuburanishwa ku wa 24/11/2025 kuri uwo munsi impande zombi zikaba zaritabye NTABWOBA Innocent akaba yariburaniraga naho INKOMBE AGRICULTURE LTD ihagarariwe na Me NISIIMWA James,mu iburanisha ry'uru rubanza Me JAMES akaba yaratanze inzitizi avuga ko uru rukiko nta bubasha rufite bwo kuburanisha iki kirego .

3. Inkombe agriculture Ltd yiregura ivuga ko yagiranye amasezerano na Innocent Ntabwoba, ubwoba bombi bemeranyaga ko Innocent azafasha Inkombe Agricultural Ltd gushaka ibibanza ndetse no kumuha ubujyanama bukenewe kugirango ibyo bibanza bibashe kuboneka ndetse no kugurwa n' INKOMBE AGRICULTURE LTD,Ku wa 14/02/2023 impande zombi zashyize umukono kuri ayo masezerano ndetse INKOMBE AGRICULTURE LTD yishyura NTABWOBA Innocent avance ingana na 150,000 Frws, kugirango atangire akazi, maze nkuko bigaragara mu ngingo ya gatatu yayo masezerano impande zombi zumvikana ko Ntabwoba azajya ahabwa Commision kugaciro kibanza cyaguzwe hashingiwe ku giciro ki kibanza,Nyuma yo gukora amasezerano Ntabwo yakoze akazi ke neza ibi bituma imikoranire hagati yimpande zombi, igorana ndetse iza no kugera ku rwego itagishobotse,bityo Inkombe Agriculture Ltd ikaba yaratunguwe no kumva Ntabwoba yarayireze yishyuza kandi azi neza ko atigeze yubahiriza inshingano ze.

4. Muri uru rubanza urukiko rurasuzuma ibibazo bikurikira:

A. Kumenya niba uru rukiko rufite ububasha bwo kwakira iki kirego.

B. Kumenya niba hari umwenda INKOMBE AGRICULTURE LTD ibereyemo NTABWOBA Innocent.

C. Kumenya niba hari amafaranga y'igihembo cya Avoka n'ay'ikurikiranarubanza yatangwa muri uru rubanza

II. ISESENGURA RY'IBIBAZO BIGIZE URUBANZA

A. Kumenya niba uru rukiko rufite ububasha bwo kwakira iki kirego.

5. Me James avuga ko batanze inzitizi yerekeye ububasha bw'urukiko rw'ubucuruzi bagendeye ku ngingo ya 81cpcsa aho ikiregerwarwa gifite agaciro ka 2.000 .000 zirenga rero hashingiwe ku ngingo ya 27 agaka ka 4 cpcsa ivuga ko ibifite agaciro gato baregera inkiko z'ubucuruzi bakaba basanga urega atari kuregera urukiko rw'ubucuruzi yari kuregera urukiko rw'ibanze .

6. Ntabwoba Innocent yireguye avuga ko icyatumye aregera urukiko rw'ubucuruzi ari uko amasezerano bagiranye ari amasezerano y'ubucuruzi akumva nta rundi rukiko yari kuregera atari urw'ubucuruzi.

UKO URUKIKO RUBIBONA

7. Impaka kuri iyi ngingo zishingiye ku kumenya niba uru rukiko rufite ububasha bwo kuburanisha iki kirego kubera ko ikiburanwa gifite agaciro gato

8. Ingingo ya 196 y'Itegeko No 22/2018 ryo kuwa 29/04/2018 ryerekeye imiburanishirize y'imanza z'imbonezamubano, iz'ubucuruzi, iz'umurimo n'iz'ubutegetsi iteganya ko urubanza rushingiye ku kiburanwa gifite agaciro gato ni urubanza rugizwe n'ikiburanwa cy'iremezo kitarengeje miliyoni eshanu z'amafaranga y'u Rwanda (5.000.000 Frw) hatabariwemo inyungu n'amafaranga y'ikurikiranarubanza. Naho ingingo ya 197 y'Itegeko No 22/2018 ryo kuwa 29/04/2018 rimaze kuvugwa haruguru igateganya ko imiburanishirize iteganyijwe muri mutwe urimo ingingo imaze kuvuga haruguru, yubahirizwa gusa iyo urega ari byo ahisemo. Ingingo ya 27 agace ka 4 y'Itegeko No 30/2018 ryo kuwa 02/06/2018 rigena ububasha bw'Inkiko iteganya ko mu birego Inkiko z'Ibanze ziburanisha ku rwego rwa mbere harimo ibirego byose byo mu rwego rw'ubucuruzi bitarengeje miliyoni eshanu (5.000.000 frw) z'amafaranga y'u Rwanda.

9. Ingingo zimaze kuvugwa haruguru zisesenguriwe hamwe zumvikanisha ko urubanza rw'ikiburanwa gifite agaciro gato rugizwe n'ikiburanwa cy'iremezo

kitarengeje 5.000.000 Frw ariko ko byubahirizwa iyo ari amahitamo y'umuburanyi, ndetse ko ibirego byo mu bucuruzi bitarengeje ayo mafaranga biburanishwa n'Inkiko z'Ibanze.

10. Urukiko rurasanga n'ubwo impaka ziburanwa kuri iyi ngingo zishingiye ku kirego kiri munsi ya 5.000.000 Frw, ariko kuba mu itegeko ryerekeye imiburanishirize y'imanza z'imbonezamubano, iz'ubucuruzi, iz'umurimo n'iz'ubutegetsi mu ngingo ya 197 yaryo hateganyijwe ko kukiregera mu Rukiko rw'Ibanze cyangwa rw'Ubucuruzi ari amahitamo y'urega, byerekana ko rigaragaza ko izo Nkiko zose zibifitiye ububasha. Kuba rero zibifitiye ububasha, kandi mu itegeko ry'ububasha bw'Inkiko hakaba nta na hamwe havugwa ko iyo ngingo iteganya ko ayo mahitamo y'umuburanyi yavuyeho, , byerekana ko kuba ikirego Ntabwoba Innocent yatanze hari ingingo yo mu Itegeko No 22/2018 ryo kuwa 29/04/2018 ryavuzwe haruguru iteganya ko yakiregera mu Rukiko rwaregewe kandi ikaba itarigeze ikurwaho, bigaragaza ko kiri mu bubasha bw'Urukiko rw'Ubucuruzi. Bityo rero inzitizi yatanzwe n'uhagarariye INKOMBE AGRICULTURE LTD nta shingiro ifite.

B. Kumenya niba INKOMBE AGRICULTURE LTD itarubahirije amasezerano yagiranye na NTABWOBA Innocent.

11. Ntabwoba avuga ko yagiranye amasezerano n'umushinwa amuha akazi ko kumubera umuhuza n'abakiriya akazi aragakora arakarangiza amuhemba igice nyuma amwishyuza amafaranga yamusigayemo yanga kuyamwishyura ,mubyo bari bumvikanye yarabikoze nawe arabyemera ariko akavuga ko yari afite imyitwarire mibi gusa ntazi imyitwarire mibi avuga kuko inshingano ze zari ukumuhuza n'umukiriya bakumvikana bamara kumvikana bakajya kwa notaire bakandikirana nyuma yaje guhura n'umukiriya wasezeranye ariko adafite attestation de marriage ,ubwo mutation ntiyakunda ikindi avuga ko atigeze agaragara ku murenge mu gihe cya mutation,ubwo akaba amushinja ko atamuherekeje kwa notaire ikindi amushinja ngo n'ibiryo na transport bakoresheje ngo kubera ko atari ahari bituma akoresha abandi bakozi yafashe ibyo yakoresheje byose akora total aramubwira ngo byose arabimukata nyuma yarakomeje aragura amaze kubona imitungo yajya kumwishyuza amubwiraho agomba kumukata akaba ariyo mpamvu yaje kuregera urukiko akaba yari kumuha 737 000frw amuhaho 150 000frw.

12. **Me James** avuga ko urega atubahirije inshingano ze nkuko zari mu masezerano icyo atakoze zimwe mu nshingano ze n'ubujyanama bwari burimo ,ni nka expert abanyamahanga bashatse Ntabwoba koko abarangira ibibanza bimwe mu bibanza biragurwa kugirango bigurwe zimwe muri mutation igihe cya mutation Ntabwoba ntabwo yari ahari urukiko ruzarebe mu masezerano ingingo ya 2 agaka ka 5, agaka ka 3 mu masezerano kavuga ko yagombaga kuba umuhuza umujyanama kugirango bitabateza igihombo ,mu gihe cyo gukora mutation Impaka zahereye aho Ntabwoba yazanye noteri utari uw'ubutaka akaba ariho igihombo cyavuye ubundi zimwe mu nshingano za Ntabwoba kwari ukubanza akavugana na bariya bantu hanyuma umu investor akaza yishyura, ahandi atujuje inshingano ze igihe kimwe bagiye muri land center mu karere adahari bakamuhamagara akababwira ko ataje bakamubwira ko inshingano ze zo gukurikirana kugeza mutation ibaye atabyubahirije, mutation zabaye nyuma kandi bahamagaje undi mu noteri Ntabwoba atari azi.

13. Ntabwoba avuga ko umunoteri w'ubugure atari noteri w'ubutaka kandi hari inyandiko ibigaragaza,ntabwo yigeze amusaba ubujyanama ngo ananirwe kubumuha ,baravuganye ngo azakurikirana icyangombwa cyagize ikibazo we amwishyure ari uko cyabonetse,akabikurikirana land title zikamwandikwaho kuvuga ko yamuhuje na noteri utemewe siko biri, yagiye azana noteri w'ubutaka aramubwira ngo yumvikane n'umunyamahanga barumvikana aranamwishyura ubwo amasezerano yayajyanye ku karere barakomfirima we icyo avuga ngo nuko atagaragaye ,ikindi ngo 5% yari kuyabona ari uko habaye mutation keretse niba ahakana ko ibyangombwa atabibonye.

UKO URUKIKO RUBIBONA

14. Impaka kuri iyi ngingo zishingiye ku kumenya niba hari umwenda INKOMBE AGRICULTURE LTD ibereyemo Ntabwoba Innocent.

15. Ingingo ya 12 y'itegeko No 22/2018 ryo ku wa 29/04/2018 ryerekeye imiburanishirize y'imanza z'imbonezamubano, iz'ubucuruzi, iz'umurimo n'iz'ubutegetsi iteganya ko Urega agomba kugaragaza ibimenyetso by'ibyo aregera. Iyo abibuze, uwarezwe aratsinda, naho ingingo ya 4 y'itegeko n° 062/2024 ryo ku wa 20/06/2024 rigenga ibimenyetso, iteganya ko "urega

cyangwa utanze ikibazo agaragaza ikimenyetso cy'ibyo aregera cyangwa asaba. Uwiregura agaragaza ikimenyetso gishyigikira ukwiregura kwe.

16. Ingingo ya 12 niya 4 zisesenguriwe hamwe, zumvikanisha ko buri wese yaba urega cyangwa uregwa bafite inshingano zo kugaragaza ukuri kw'ibyo baburana batabigaragaza bagatsindwa.

17. Ku birebana n'uru rubanza, dosiye igaragaraza amasezerano yabaye hagati y'INKOMBE AGRICULTURE LTD na Ntabwoba Innocent yo ku wa 14/02/2023, dosiye igaragaza ubutumwa noteri yandikiye Inkombe Agriculture ltd ayishyuza akazi yakoze yazanywe na Ntabwoba Innocent,igaragaza kandi ibaruwa Ntabwoba Innocent yandikiye Inkombe Agriculture ltd ayishyuza amafaranga batamuhaye ku wa 9/04/2024 hakaba niyo bamusubije yo kuwa 11/04/2024.

18. Urukiko rushingiye ku ngingo zavuzwe haruguru rusanga ikirego cyatanzwe na Ntabwoba Innocent nta shingiro gifite kubera ko atagaragarije urukiko ibimenyetso bigaragaraza ibibanza yashakiye Inkombe Agriculture ltd ndetse n'amafaranga yishyuwe kuri buri kibanza kugirango urukiko ruhereho rumenya amafaranga atishyuwe cyane ko mu masezerano batigeze bagaragaza ingano y' amafaranga agomba kuzishyurwa bavuze ko azabarirwa kuri buri kibanza 5%,urukiko rukaba ntaho rwahera rwemeza ko ahabwa amafaranga aregera mu gihe atagaragaza ibyo bibanza bityo rero ikirego cye kikaba nta shingiro kigomba guhabwa .

19. Kuba Ntabwoba avuga ko bumvikanye ko azahembwa 587.000frw ndetse akaba yarahawe avance ya 150.000frw rusanga nta shingiro bigomba guhabwa kubera ko bitagaragara mu masezerano bagiranye bityo rero imvugo ze zikaba nta shingiro zihawe.

C. Kumenya niba hari amafaranga y'igihembo cya Avoka n'ay'ikurikirarubanza yatangwa muri uru rubanza.

20. Ntabwoba Innocent avuga ko INKOMBE AGRICULTURE LTD iza gukemura ikibazo mu bwumvikane bitari gutuma NTABWOBA Innocent ajya mu manza, yakomeje gusiragira yishyuza asaba ko ikibazo gikemurwa mu bwumvikane, kwandika kwiyambaza Avoka wakomeje gukurikirana ikibazo,

bimuteza igihombo kinini akaba agomba kuyishyura indishyi z'ikurikiranarubanza zihwanye na 1,000,000 Frw, igihembo cy'Avoka gihwanye 1,000,000 Frw n'amagarama y'urubanza ahwanye na 20,000 Frw.

21. INKOMBE AGRICULTURE LTD yireguye ivuga ko ingingo ya 208 y'itegeko No 22/2018 ryo ku wa 29/04/2018 ryerekeye imiburanishirize y'imanza z'imbonezamubano, iz'ubucuruzi, iz'umurimo n'iz'ubutegetsi, Iteganya ko "Umuburanyi uhisemo kunganirwa cyangwa guhagararirwa na avoka agomba kwirengera ikiguzi cyabyo. Ntiyemerewe gusaba urukiko gutegeka uwo baburana kumwishyura ayo mafaranga." Ingingo ya 200 y'itegeko No 22/2018 ryo ku wa 29/04/2018 ryerekeye imiburanishirize y'imanza z'imbonezamubano, iz'ubucuruzi, iz'umurimo n'iz'ubutegetsi, Mu "manza zifite agaciro gato, amafaranga y'ikurikiranarubanza atangwa ntashobora kurenza atanu ku ijana (5%) y'agaciro k'ikiburanwa,

22. INKOMBE AGRICULTURE LTD bakaba basaba indishyi zingana na 1,200,000 Rwf akubiyemo Kubera imiyitwarire yo kutavugisha ukuri rero, yatumye umunoteri w'ubutaka akajya aho ubutaka buri inshuro ebyiri, ibi bikaba byaratumye Liang atanga amafaranga angana n'ibihumbi Magana inani mirongo ine (840,000 RWF). Nkuko bigaragagara muri message ya watsap Noteri yandikiye Liang amwishyuza, ndetse yewe na account number ya bank igaragaza aho yishyuriwe, Mu gihe cyiz'ingendo zose, buri rugendo rwari ruhagaze amafaranga ibihumbi ijana (100,000 Frw) ubariyemo itike, igihe cyatakaye, amafunguro n'amafaranga y'ubwato. Abakozi bajyanye no gucapa inyandiko batwishyuje 50,000 Frw. Kwishyura umu agent wokubikuza cyangwa kubika amafaranga aho yishyuwe ibihumbi makumyabiri (20,000 Frw). Igiteranyo cyose kikaba 370,000 Frw. Umwe muri banyir'ubutaka yahinduye umugambi nyuma y'uko bishyuriye amafaranga yose y'iyandikwa ry'ubutaka, bigatuma barishyuriye amafaranga angana na 90,000 Frw .

UKO URUKIKO RUBIBONA

23. Kuri iyi ngingo impaka zishingiye ku kumenya niba hari indishyi zigomba gutangwa muri uru rubanza .

24. Ingingo ya 111 y'Itegeko Nº 22/2018 ryo ku wa 29/04/2018 ryerekeye imiburanishirize y'imanza z'imbonezamubano, iz'ubucuruzi, iz'umurimo n'iz'ubutegetsi, nk'uko ryahinduwe kandi ryujujwe kugeza ubu, iteganya ko: "Ikirego cy'amafaranga y'ikurikiranarubanza ni ikirego gishamikira ku kirego cy'iremezo kigamije kwishyuza ibyakoreshejwe mu rubanza.

25. Ingingo ya 34 y'Amabwiriza Nº 01/2014 agena ibihembo mbonera by'abavoka iteganya ko: "Bitabangamiye ibiteganywa n'ingingo zibanziriza iyi, zo muri aya mabwiriza, avoka afite uburenganzira bwo kugena igihembo ashyize mu gaciro, ariko kitari munsi y'amafaranga 500.000, kandi kitarengeje amafaranga 3.000.000".

26. Izi ngingo zimaze kuvugwa haruguru, iyo zisesenguriwe hamwe zumvikanisha ko urega cyangwa uregwa watsinze urubanza afite uburenganzira bwo kurihwa ibyo yarutakajemo harimo n'amafaranga yishyuye Avoka.

27. Urukiko rushingiye ku ngingo zavuzwe haruguru rurasanga nta ndishyi zigomba gutangwa muri uru rubanza kubera ko uwari kuzihabwa ari INKOMBE AGRICULTURE LTD kandi indishyi asaba akaba atarazigaragaraije ibimenyetso usibye kuba abivuga gusa cyane ko ikimenyetso atanga ari inyandiko notaire yabandikiye n'amafaranga yishyuwe rukaba rusanga yarishyuwe ibihumbi magana ane(400.000frw) mu gihe bishyuza 840.000frw rero urukiko rukaba rutamenya niba ariyo bari bumvikanye cyangwa byarabaye kubw'amakosa ya Ntabwoba Innocent.

III. ICYEMEZO CY'URUKIKO.

28. **Rwemeje** ikirego cyatanzwe na Ntabwoba Innocent nta shingiro gifite.

29. **Rwemeje** ko nta mwenda INKOMBE AGRICULTURE LTD ibereyemo Ntabwoba Innocent.

30. **Rutegetse** nta ndishyi zitangwa muri uru rubanza.

31. **Rutegetse** amafaranga ibihumbi makumyabiri (20.000frw) y'amagarama ibereyemo Ntabwoba Innocent yatanze arega ahwanye n'ibyakozwe mu rubanza .

NI UKO RUKIJIJWE KANDI RUSOMEWE MU RUHAME NONE KU WA 09/01/2026.

(sé)	(sé)
Cyiza Beatrice	**Ishimwe Elphride**
Umucamanza	**Umwanditsi**